

24STCV31938 24STCV31938

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-06-26

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Case Number: 24STCV31938 Hearing Date: June 26, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

STEPHON WATFORD

vs.

PROMISE ASSISTED LIVING, LLC

Case

No.: 24STCV31938

Hearing Date: June 26, 2026

Defendant's motion to compel further answers at Plaintiff's deposition is GRANTED. Plaintiff is sanctioned, jointly and severally with counsel, \$1,050, due within 15 days of entry of order. Plaintiff is directed to cover the expenses of the resumed disposition and is to provide a list of three available dates for further deposition to take place within 15 days of entry of this order.

On 12/4/2024,

Plaintiff Stephon Watford (Plaintiff) filed suit against Promise Assisted Living, LLC, alleging: (1) whistleblower retaliation; (2) retaliation and discrimination; and (3) wrongful termination.

On 4/7/2026, Defendant Promise Assisted Living, LLC (Defendant) moved to compel further answers at Plaintiff's deposition.

The motion is unopposed.

Discussion

Defendant moves for an order compelling Plaintiff to appear for a resumed deposition, requiring Plaintiff to answer fully and completely all 19 deposition questions, and permitting Defendant to ask follow-up questions at the continued deposition. Further, Defendant requests monetary sanctions in connection with the motion, as well as an order requiring Plaintiff to pay the full expense of the court reporter and videographer at the reconvened deposition.

After review, the Court finds good cause to grant the request relief.

When a deponent fails to answer deposition questions, the party seeking discovery may move the court for an order compelling that answer. (Code Civ. Proc. (CCP) § 2025.480(a).) "If the court determines that the answer . . . sought is subject to discovery, it shall order that the answer be given . . . on the resumption of the deposition." (CCP § 2025.480(i); see *Gregori v. Bank of Am.* (1989) 207 Cal.App.3d 291, 310-311, as modified (Feb. 17, 1989) (compelling deposition answers deponent failed to answer on privacy grounds).)

All 19 questions at issue in this motion relate to Plaintiff's claim of retaliatory discharge, his obligation to mitigate any lost wages, the mitigation income he did earn, and mitigation income he should have earned and any damages sought beyond lost wages and emotional distress. (Grutman Decl., ¶ 4, Exh. B (excerpts from Plaintiff's deposition.) None of the 19 questions are subject to any privilege, nor did Plaintiff suspend the deposition to seek a protective order. (Id.)

Based on the foregoing, Defendant's motion

to compel further answers at Plaintiff's deposition is granted. Plaintiff is sanctioned, jointly and severally with counsel, \$1,050, due within 15 days of entry of order. Plaintiff is ordered to pay for the expenses of the resumed disposition and is to provide a list of three available dates for further deposition to take place within 15 days of entry of this order.

It is so
ordered.

Dated:
June , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.